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(12)

United States Design Patent

Marotti et al.

(10)

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(45)

Date of Patent:

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(54) TOOTHPASTE CARTON

- (71)

Applicant:

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- (72)

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- (**)

Term:

15 Years
- (21)

Appl. No.:

29/834,426
- (22)

Filed:

Apr. 12, 2022

Related U.S. Application Data

- (62)

Division of application No. 29/717,332, filed on Dec. 17, 2019, now Pat. No. Des. 953,160.
- (51)

LOC (14) Cl.

09-03
- (52)

U.S. Cl.

USPC D9/432
- (58)

Field of Classification Search

USPC D3/322; D5/56, 59, 60, 62; D7/601,
D7/602, 609, 703; D9/414, 415, 416,
(Continued)

(56) References Cited

U.S. PATENT DOCUMENTS

D216,871 S 3/1970 Leis
D275,837 S 10/1984 Poelvoorde
(Continued)

FOREIGN PATENT DOCUMENTS

CN 302880122 * 7/2014
RU 00087183 12/2013
(Continued)

OTHER PUBLICATIONS

Crest 3D White Luxe ChickAdvisor <https://web.archive.org/web/20190704141906/https://www.chickadvisor.com/item/crest-3d-white-luxe-glamorous-white-toothpaste/> Available Jul. 4, 2019 (Year: 2019).*
(Continued)

Primary Examiner — Leanne Was-Englehart
(74) Attorney, Agent, or Firm — Elizabeth A. Conklin

(57) CLAIM

The ornamental design for a toothpaste carton as shown and described.

DESCRIPTION

The file of this patent contains at least one drawing/photograph executed in color. Copies of this patent with color drawing(s)/photograph(s) will be provided by the Office upon request and payment of the necessary fee.

FIG. 1 is a front, left, and bottom perspective view of a first embodiment of a toothpaste carton;

FIG. 2 is a front view thereof;

FIG. 3 is a right side view thereof;

FIG. 4 is a back view thereof;

FIG. 5 is a left side view thereof;

FIG. 6 is a top view thereof; and

FIG. 7 is a bottom view thereof.

FIG. 8 is a front, left, and bottom perspective view of a second embodiment of a toothpaste carton;

FIG. 9 is a front view thereof;

FIG. 10 is a right side view thereof;

FIG. 11 is a back view thereof;

FIG. 12 is a left side view thereof;

FIG. 13 is a top view thereof; and

FIG. 14 is a bottom view thereof.

FIG. 15 is a front, left, and bottom perspective view of a third embodiment of a toothpaste carton;

FIG. 16 is a front view thereof;

FIG. 17 is a right side view thereof;

FIG. 18 is a back view thereof; and

FIG. 19 is a left side view thereof;

FIG. 20 is a top view thereof; and

FIG. 21 is a bottom view thereof.

(Continued)

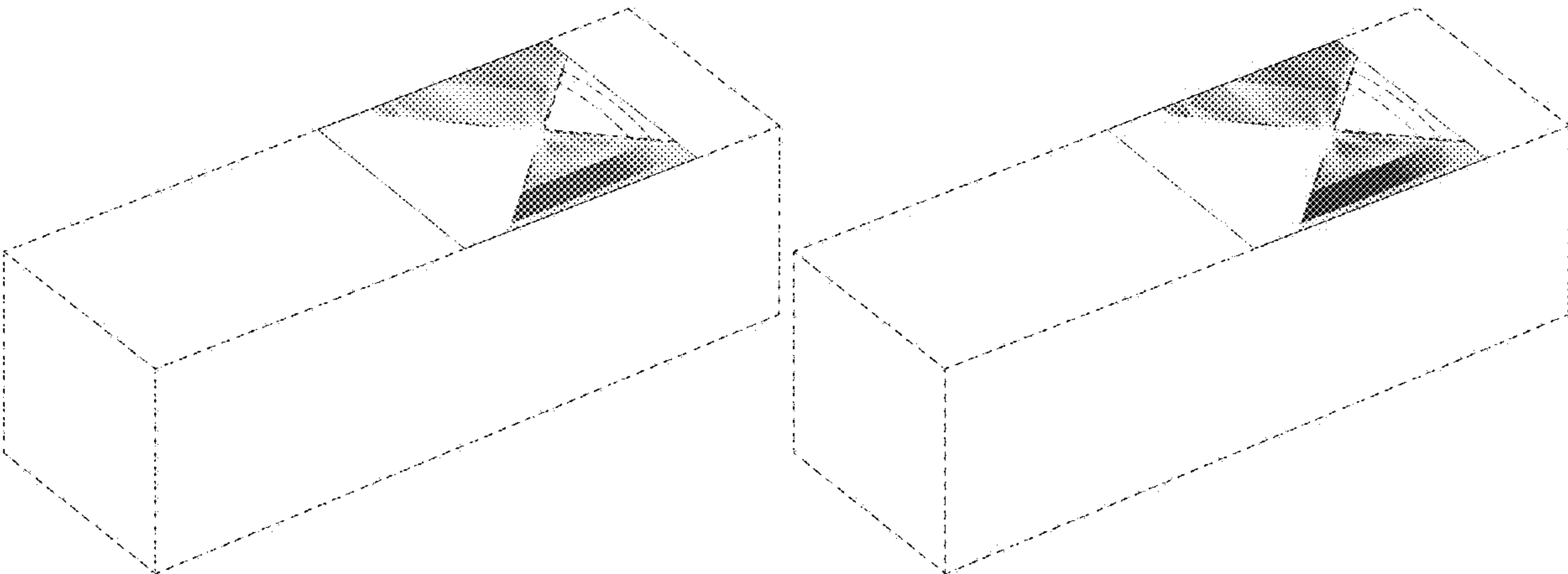


FIG. 22 is a front, left, and bottom perspective view of a fourth embodiment of a toothpaste carton;
 FIG. 23 is a front view thereof;
 FIG. 24 is a right side view thereof;
 FIG. 25 is a back view thereof;
 FIG. 26 is a left side view thereof;
 FIG. 27 is a top view thereof; and,
 FIG. 28 is a bottom view thereof.
 The broken lines are shown for the purpose of illustrating parts of the article that form no part of the claim. The dot-dash lines represent the boundaries of the claim and form no part thereof.

1 Claim, 12 Drawing Sheets
(3 of 12 Drawing Sheet(s) Filed in Color)

(58) **Field of Classification Search**

USPC D9/418, 420, 423, 425, 432, 433, 453,
 D9/454, 457, 703, 713; D27/175, 186;
 D28/66, 73
 CPC B65D 35/34; B65D 35/56; B65D 5/00;
 B65D 5/0218; B65D 5/0227; B65D
 5/0236; B65D 5/0254; B65D 5/06; B65D
 5/24; B65D 5/249; B65D 5/42; B65D
 5/4204; B65D 13/04; B65D 25/34; B65D
 25/54; B65D 75/00; B65D 75/04; B65D
 75/26; B65D 75/40; B65D 77/00; B65D
 77/003; B65D 85/00; B65D 2203/00;
 B65D 2203/02; A45D 2200/05
 See application file for complete search history.

D750,900 S	3/2016	Duparc	
D762,465 S	8/2016	Popper et al.	
D767,398 S	9/2016	Miyazaki et al.	
D776,710 S	1/2017	Na et al.	
D777,512 S	1/2017	Lu	
D784,455 S	4/2017	Sims et al.	
D786,680 S	5/2017	Merchant et al.	
D788,803 S	6/2017	Lim et al.	
D791,594 S	7/2017	Klarin	
D798,703 S	10/2017	Hainaut et al.	
D811,218 S	2/2018	Baldino et al.	
D821,199 S	6/2018	Boston et al.	
D822,480 S	7/2018	Rivera	
D822,481 S	7/2018	Rivera	
D829,105 S	9/2018	Templeman	
D832,500 S	10/2018	Qiu	
D833,868 S	11/2018	Marotti et al.	
D842,101 S	3/2019	Breen et al.	
D842,102 S	3/2019	Janes et al.	
D842,692 S	3/2019	Breen et al.	
D842,693 S	3/2019	Janes et al.	
D842,694 S	3/2019	Janes et al.	
D848,850 S	5/2019	Gillespie	
D850,909 S	6/2019	Ogaki et al.	
D852,820 S	7/2019	Sanchez	
D854,551 S	7/2019	Pistiner et al.	
D855,452 S	8/2019	Palacios et al.	
D867,878 S	11/2019	Pushkar	
D867,879 S	11/2019	Pushkar	
D870,551 S	12/2019	Klesmith	
D871,210 S	12/2019	Clifton	
D874,270 S	2/2020	Seo et al.	
D880,293 S	4/2020	Redding	
D885,654 S	5/2020	Ding	
D895,197 S	9/2020	Cheung et al.	
D899,679 S	10/2020	Liu	
D928,611 S *	8/2021	Murchison	D9/434
D953,160 S *	5/2022	Marotti	D9/432

(56) **References Cited**

U.S. PATENT DOCUMENTS

D499,019 S	11/2004	Sagmeister et al.	
D586,210 S	2/2009	Noschang et al.	
D595,129 S	6/2009	Russell et al.	
D603,270 S *	11/2009	Kusumi	D9/624
D619,015 S *	7/2010	Kusumi	D9/624
D626,426 S	11/2010	Chiang	
D626,855 S	11/2010	Chiang	
D629,044 S	12/2010	Suyama et al.	
D637,486 S	5/2011	Andrew	
D639,652 S *	6/2011	Abdalkhani	D9/418
D646,157 S *	10/2011	Work	D9/418
D649,874 S	12/2011	Barclay et al.	
D660,145 S	5/2012	Tekulve et al.	
D669,793 S	10/2012	Hynes et al.	
D693,681 S	11/2013	Allen et al.	
D701,760 S	4/2014	Fraser et al.	
D706,630 S	6/2014	Merchant et al.	
D711,737 S	8/2014	Hara et al.	
D750,899 S	3/2016	Duparc	

FOREIGN PATENT DOCUMENTS

WO	D082399-014	*	6/2014
WO	D101013-006	*	11/2018
WO	D208724001		12/2020
WO	D208724004		12/2020
WO	D208724005		12/2020
WO	D208724006		12/2020
WO	D208725006		12/2020
WO	D208725007		12/2020
WO	D208725008		12/2020

OTHER PUBLICATIONS

“Amazon.com: Crest Toothpaste 30 White Glamorous White” Retrieved from: <https://www.amazon.com/Crest-White-Luxe-Glamorous-Toothpaste/dp/B01KZOTTZW>, Retrieved on: Dec. 16, 2020, 10 Pages.
 All Office Actions, U.S. Appl. No. 29/717,332, filed Dec. 17, 2019.
 All Office Actions, U.S. Appl. No. 29/773,754, filed Mar. 11, 2021.

* cited by examiner

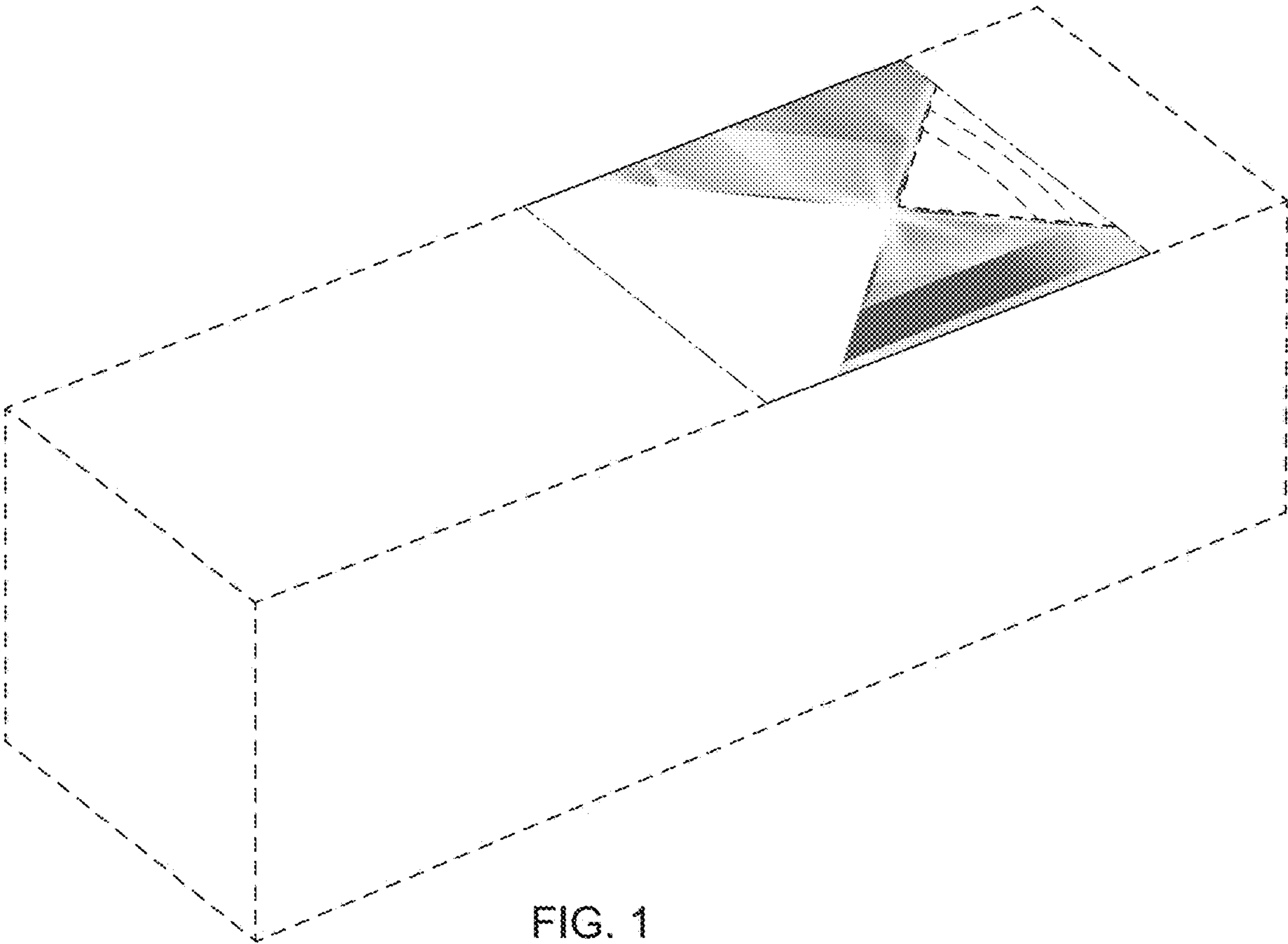


FIG. 1

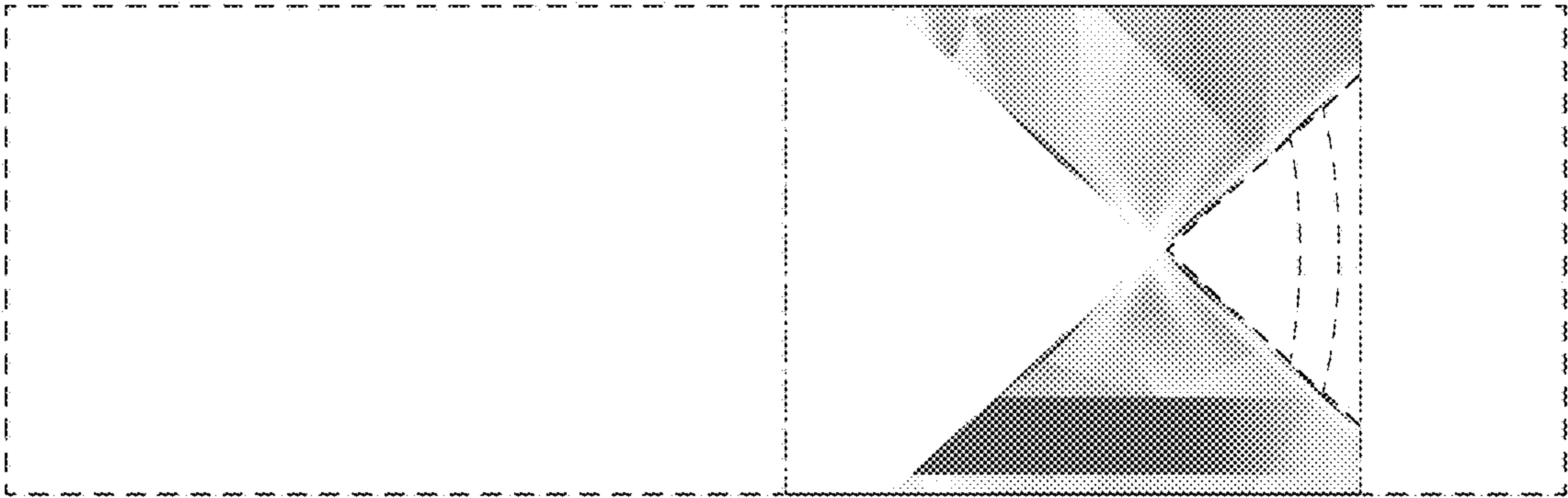


FIG. 2

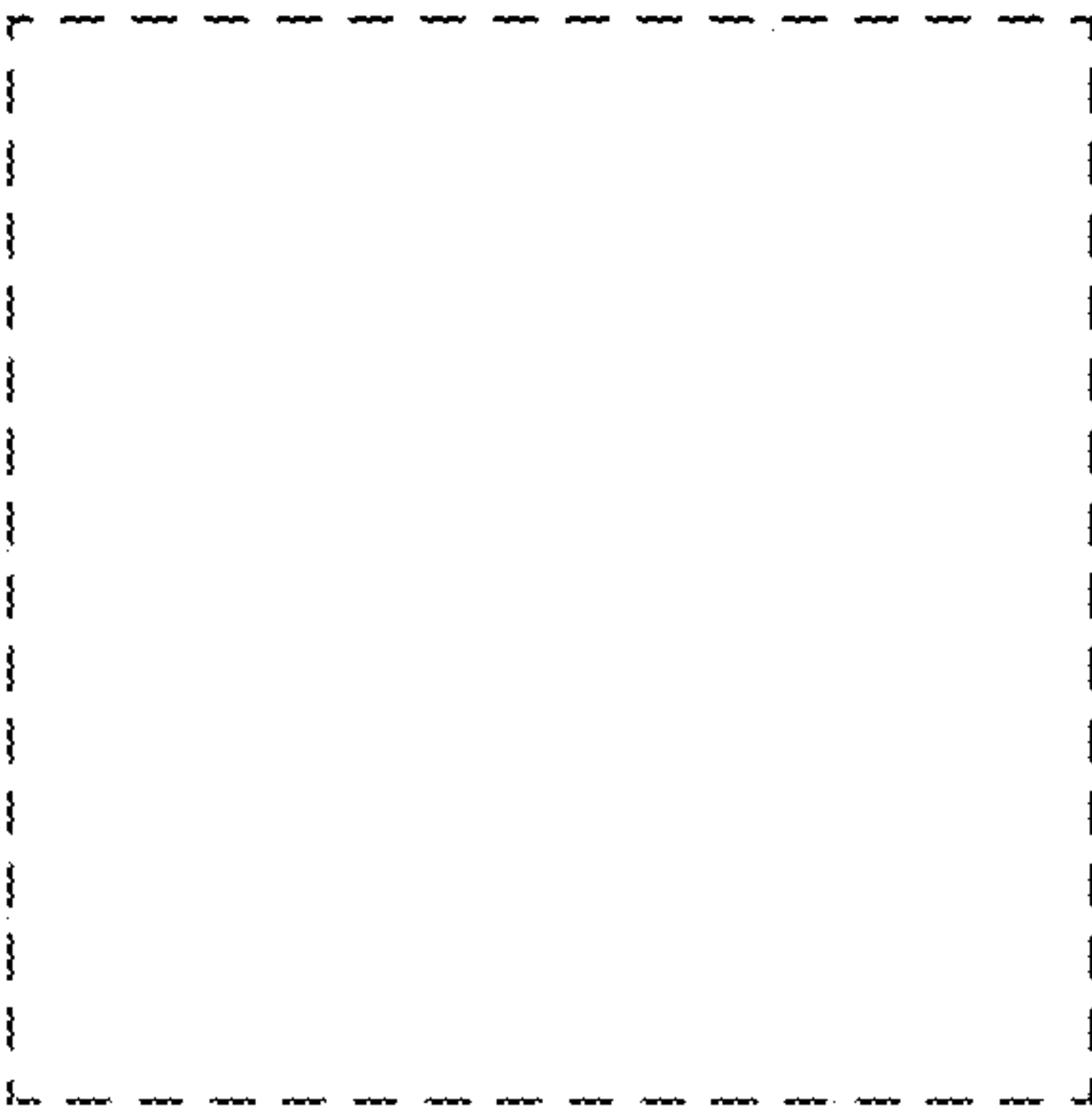


FIG. 3

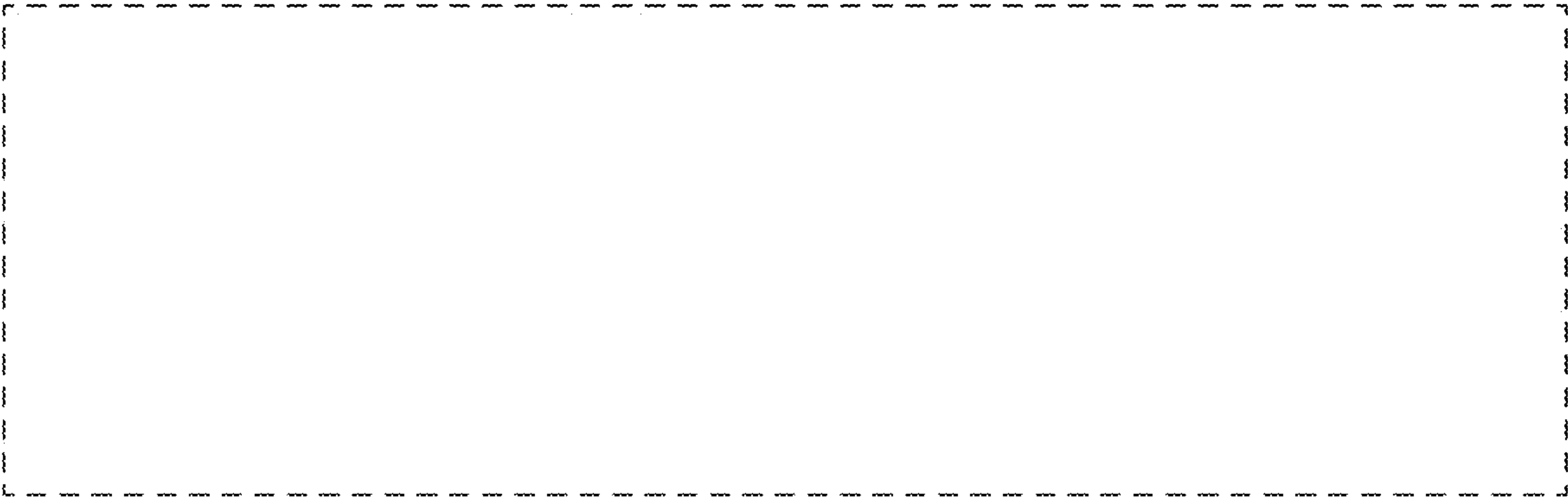


FIG. 4

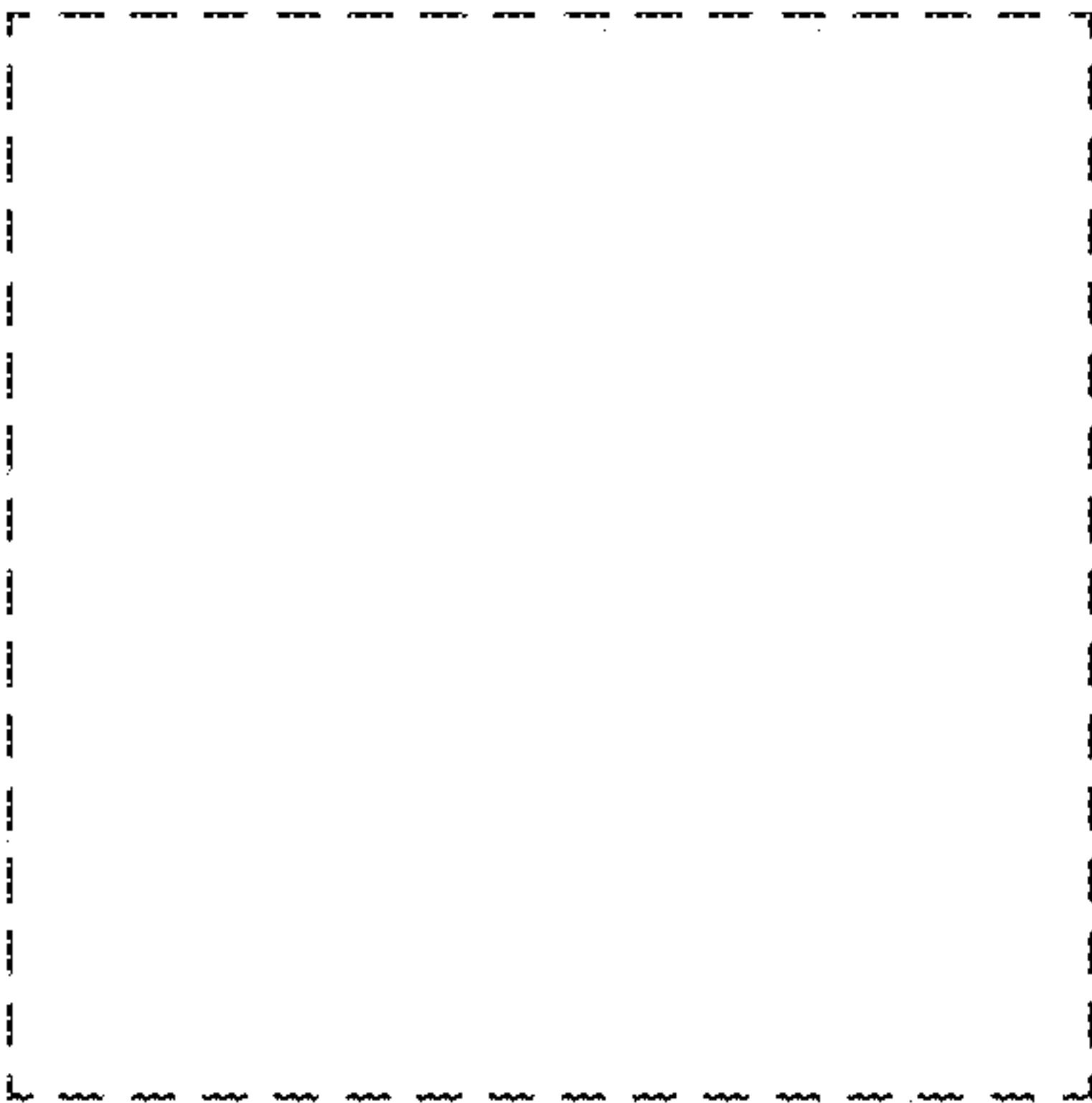


FIG. 5

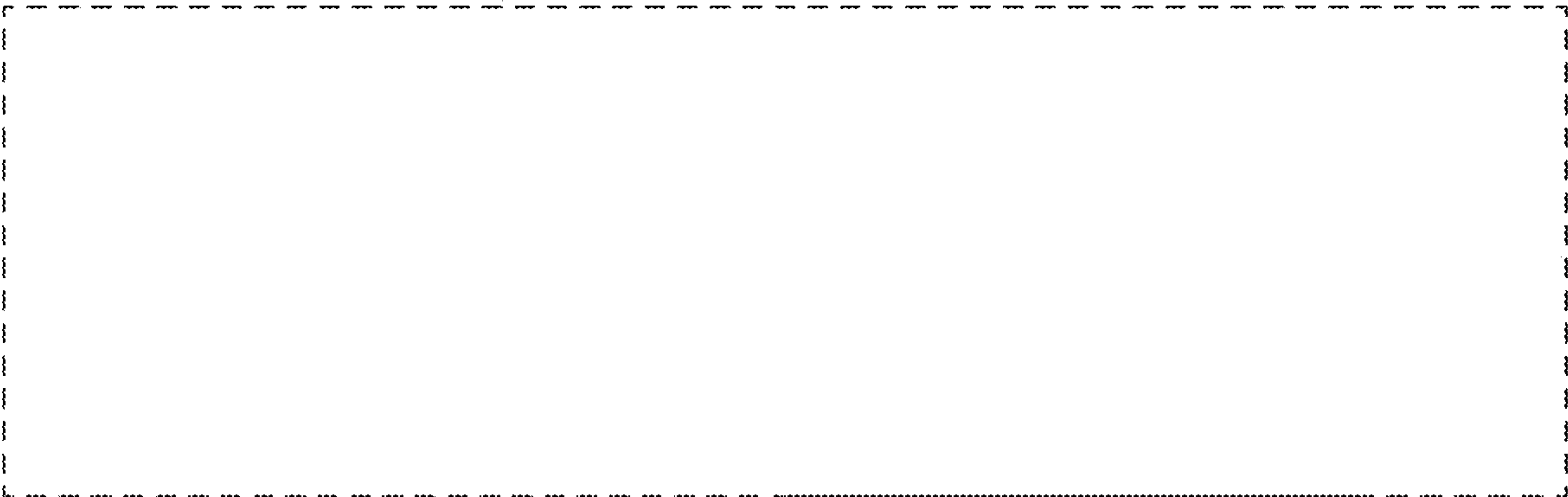


FIG. 6

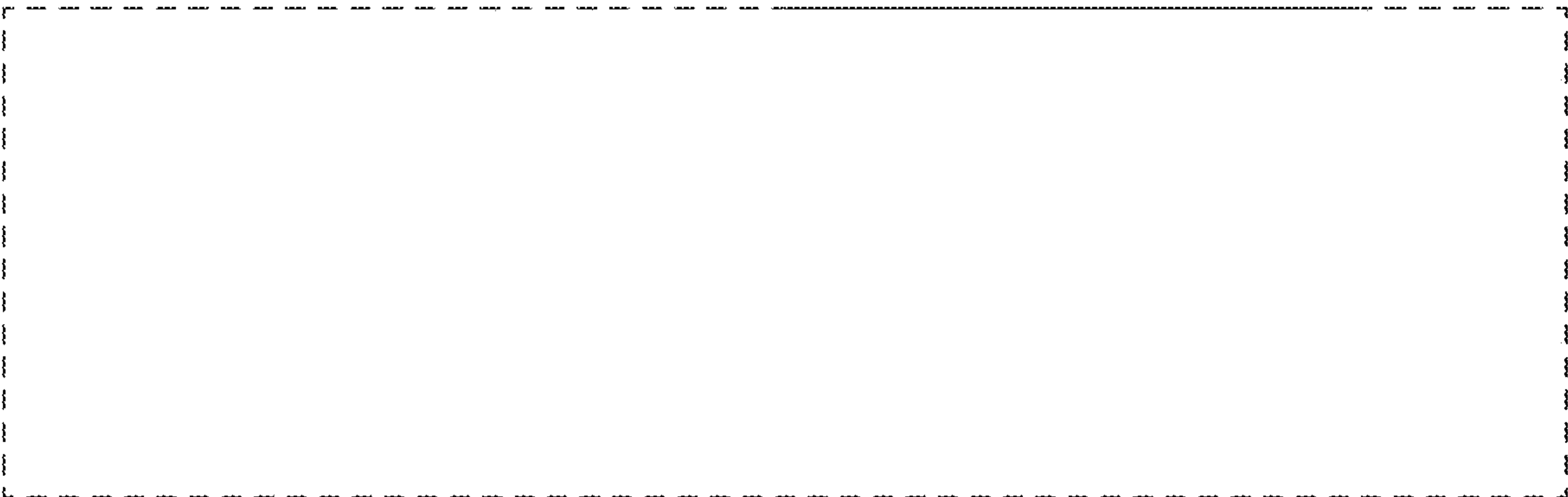


FIG. 7

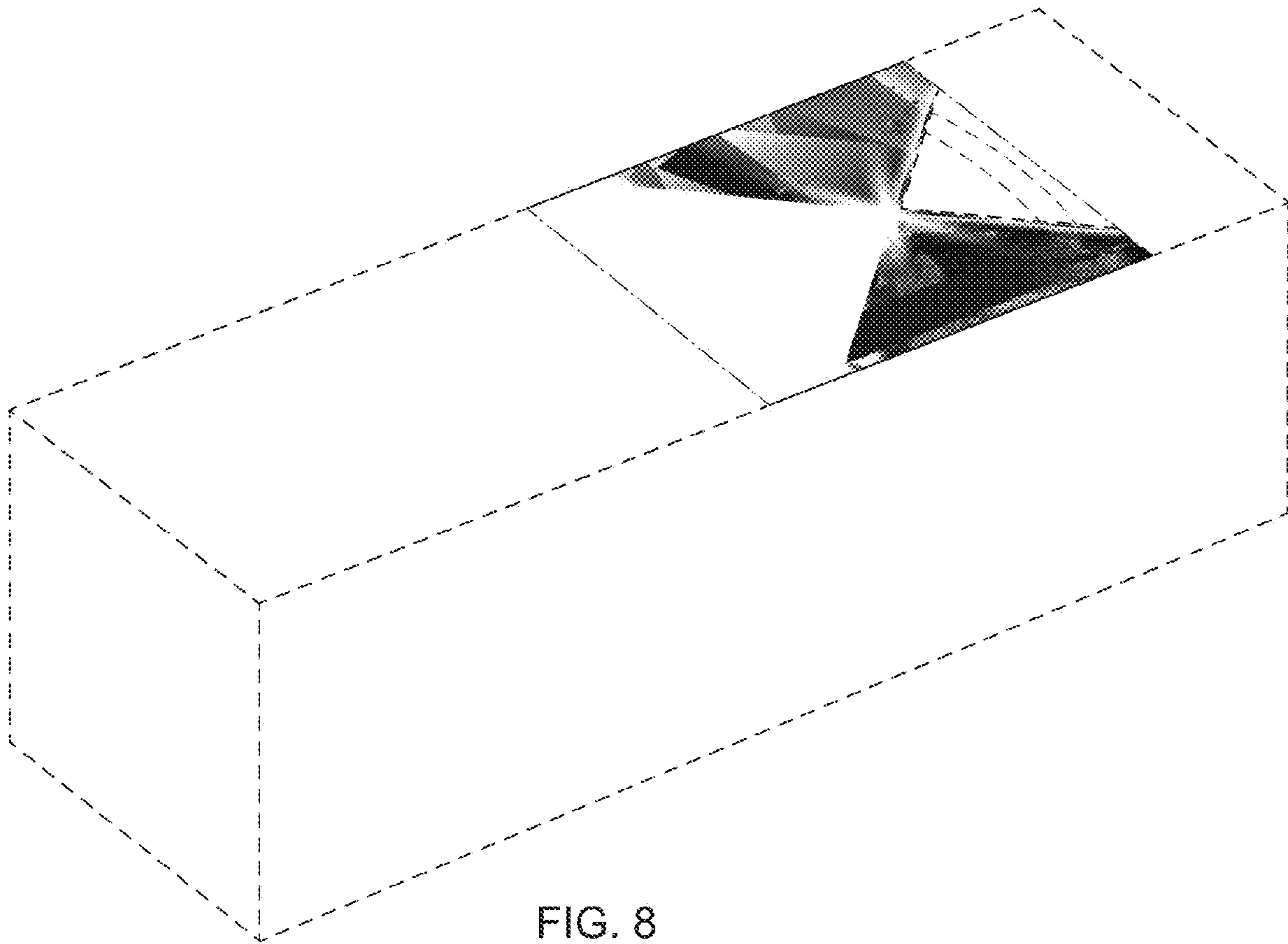


FIG. 8

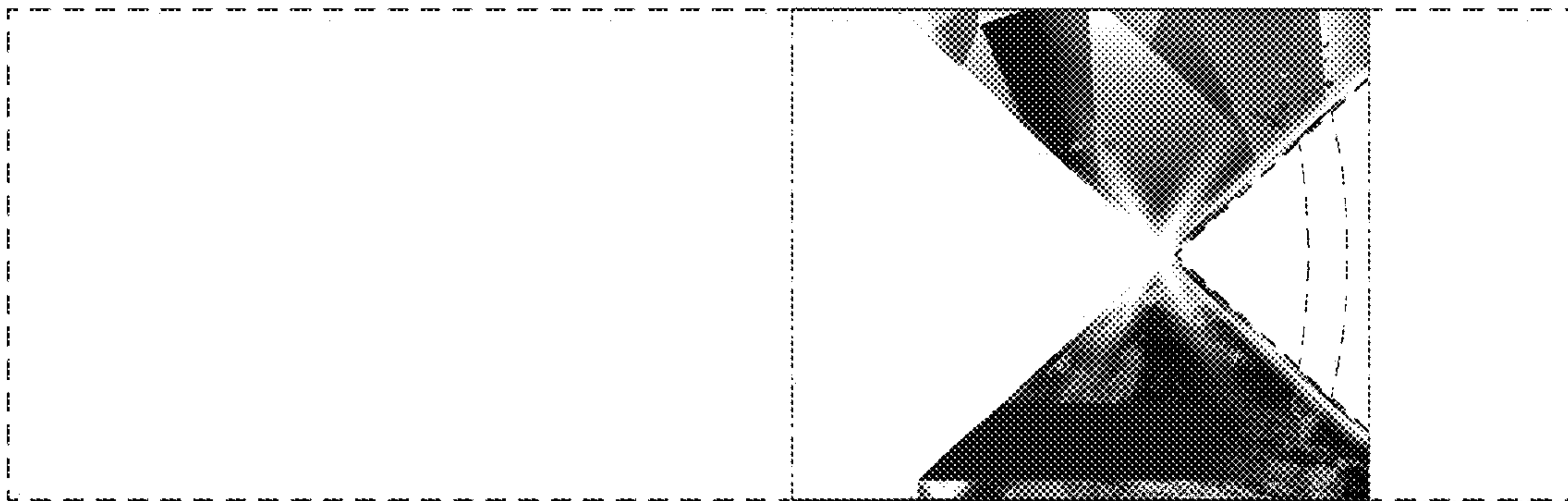


FIG. 9

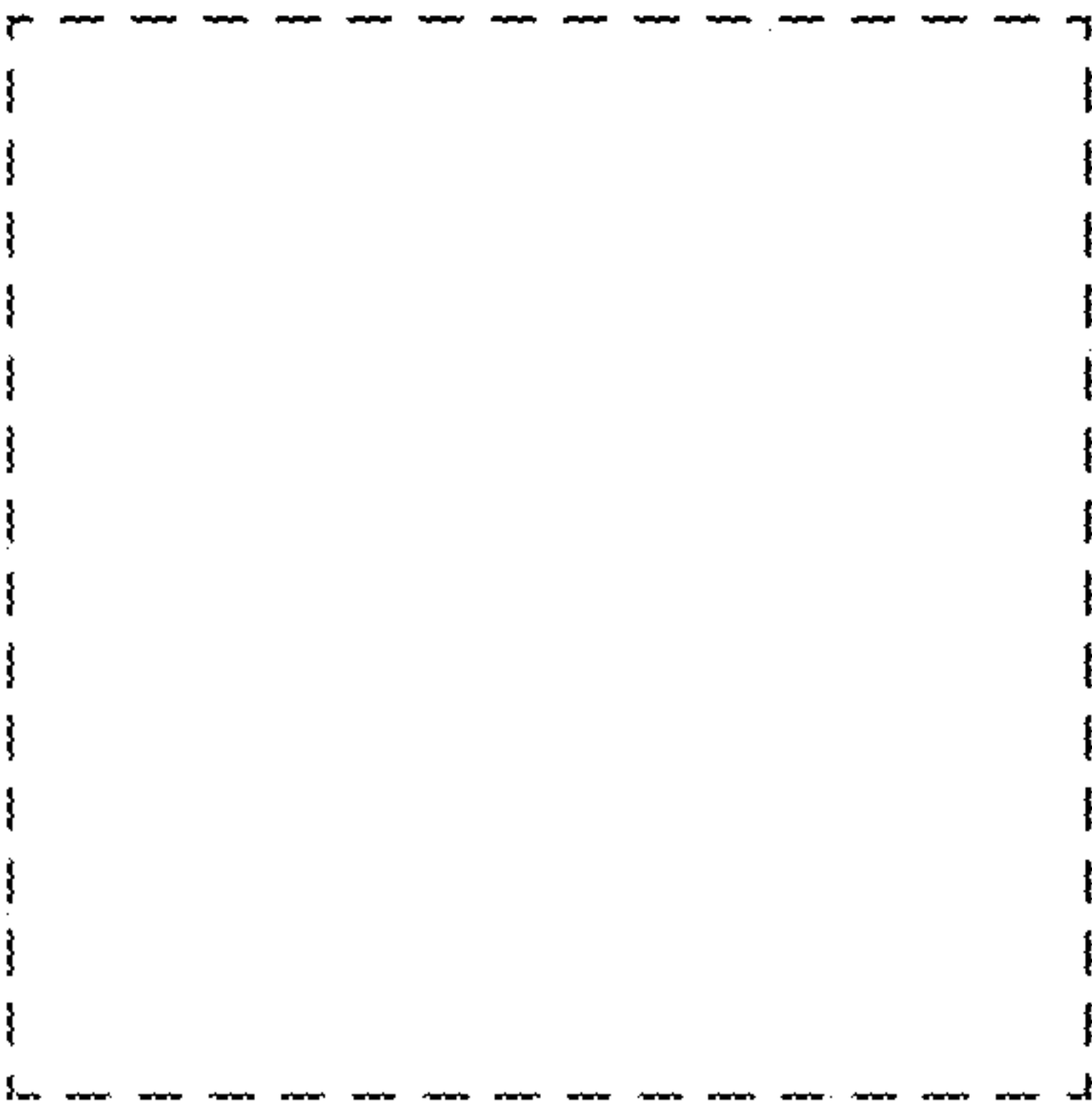


FIG. 10

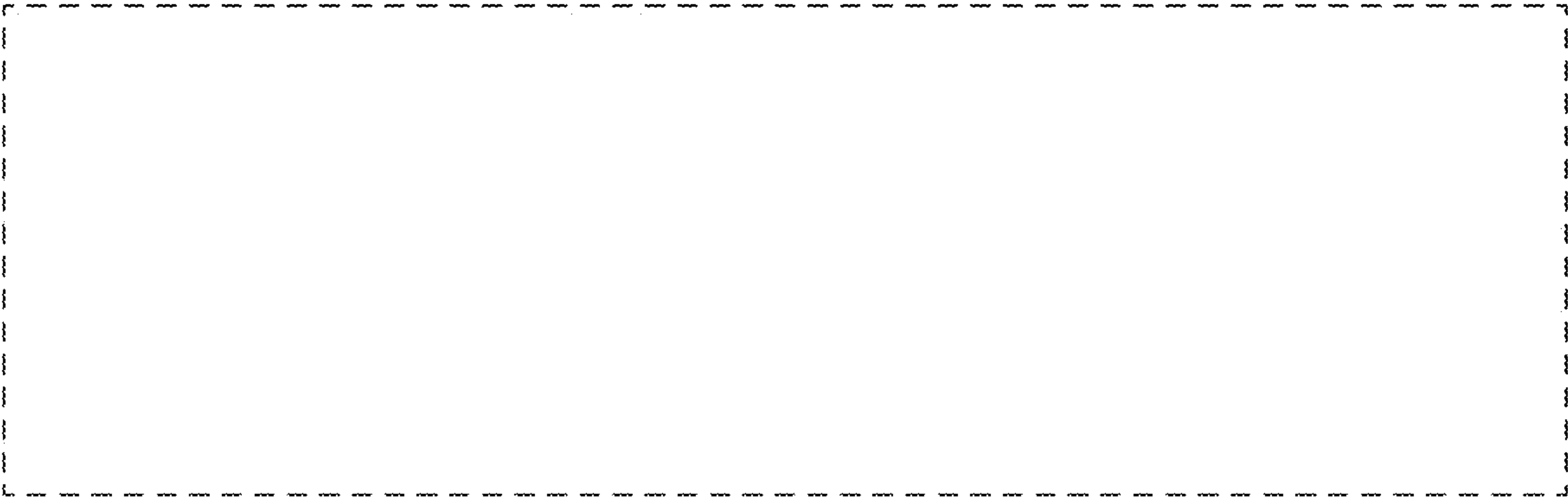


FIG. 11

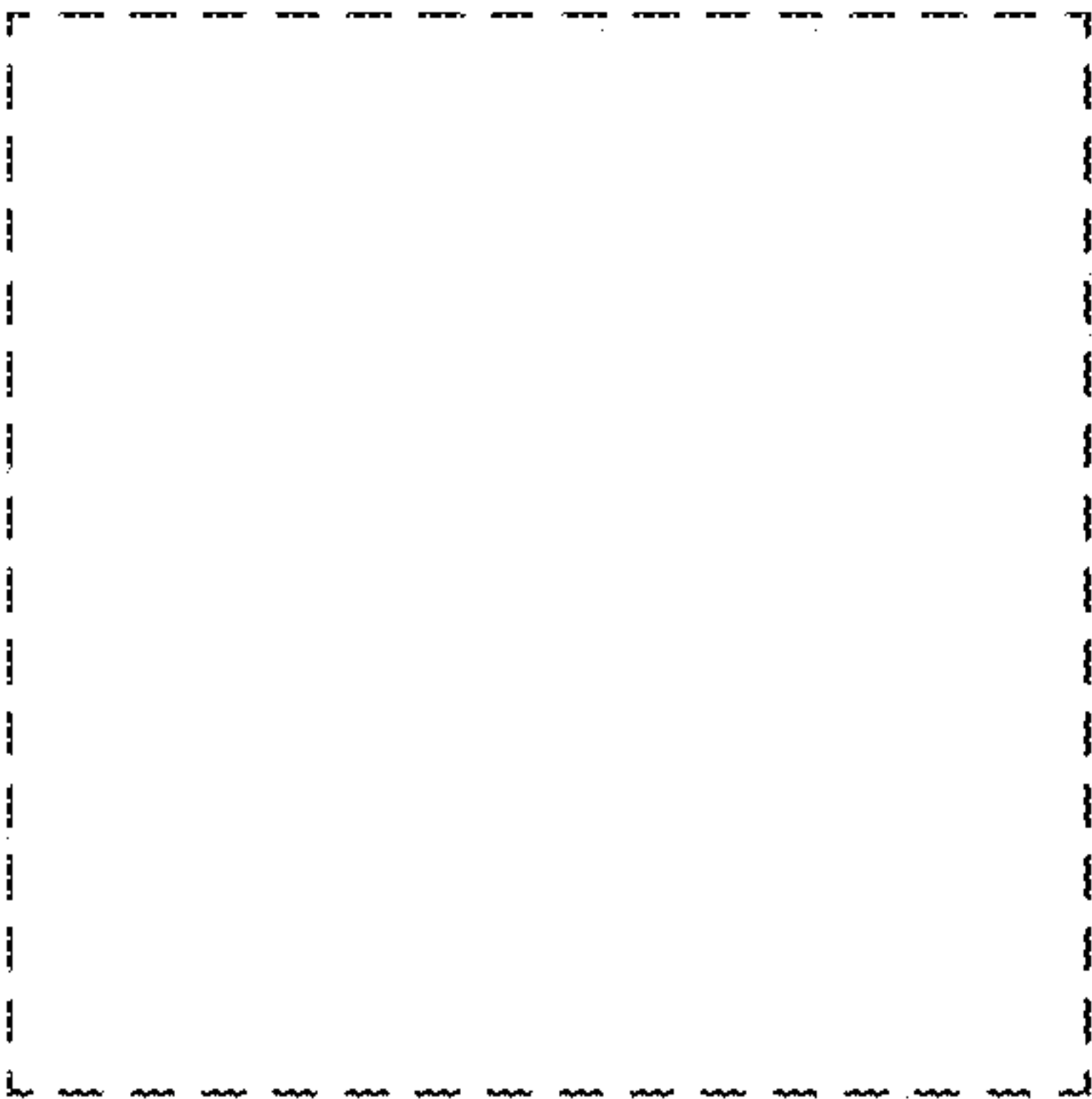


FIG. 12

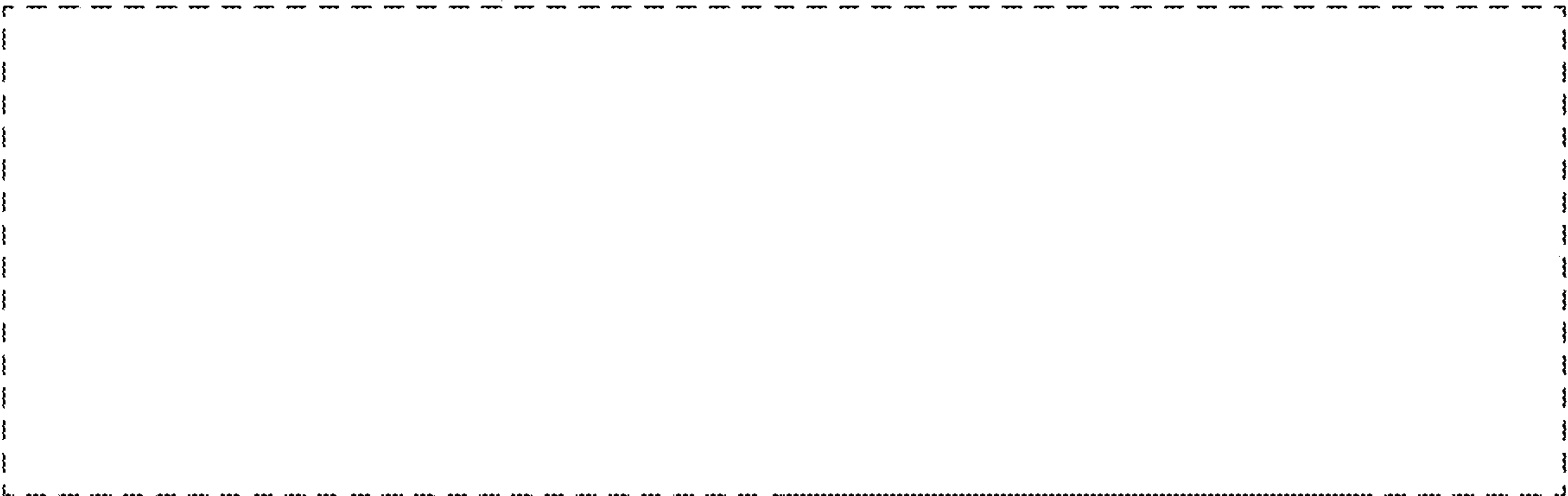


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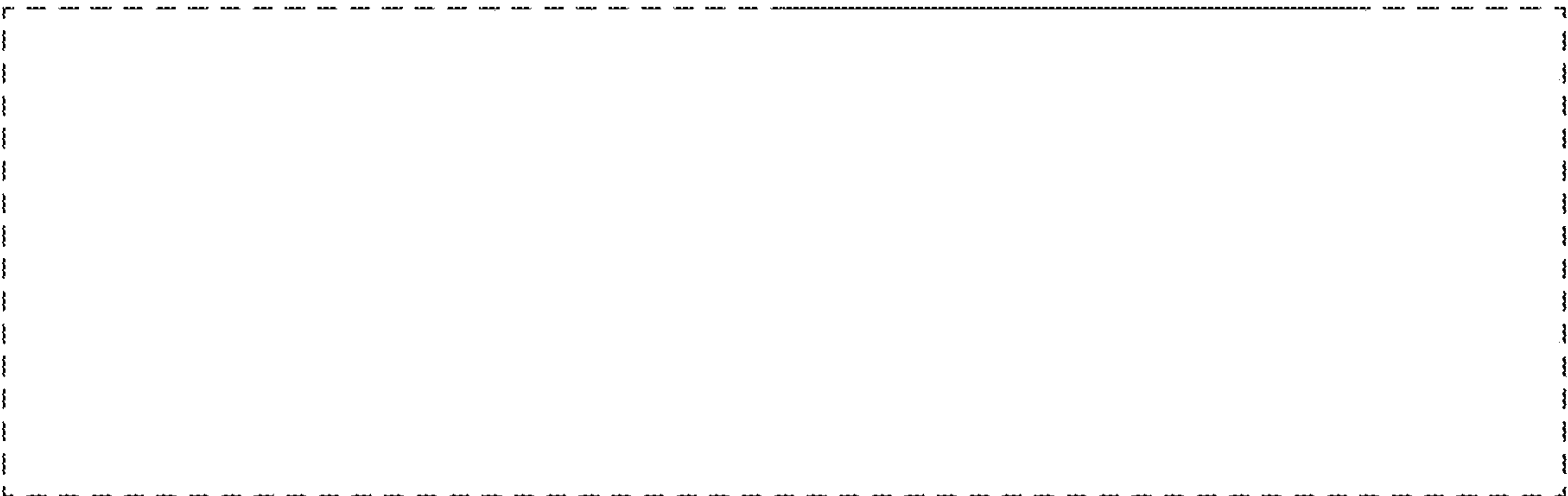


FIG. 14

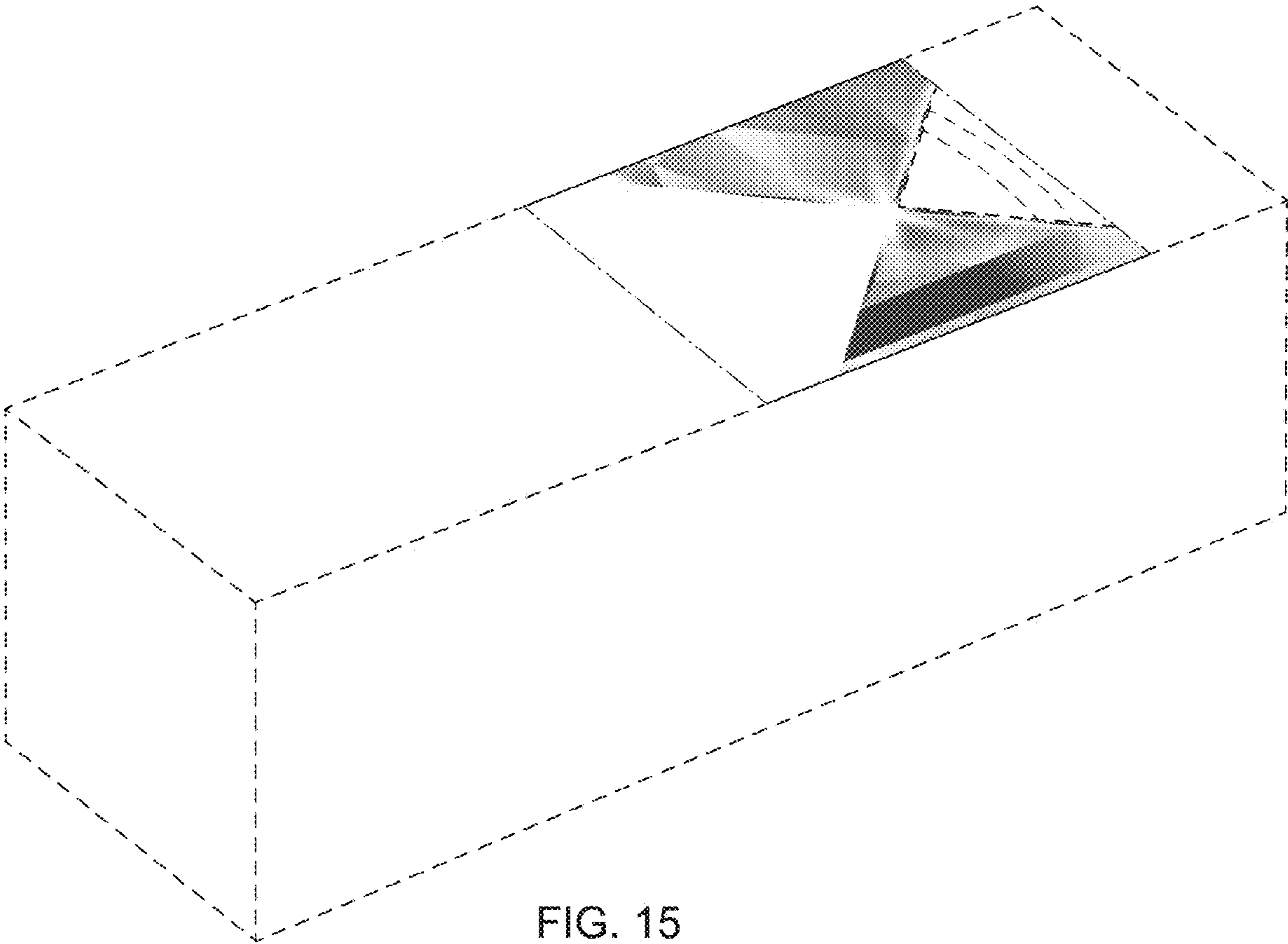


FIG. 15

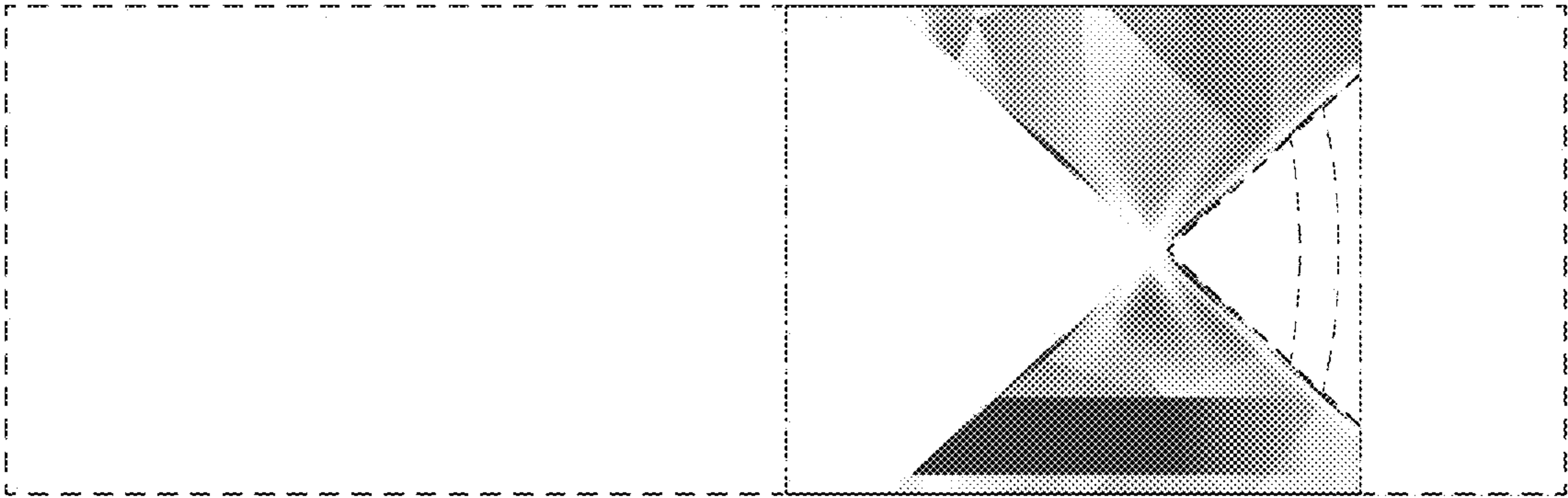


FIG. 16

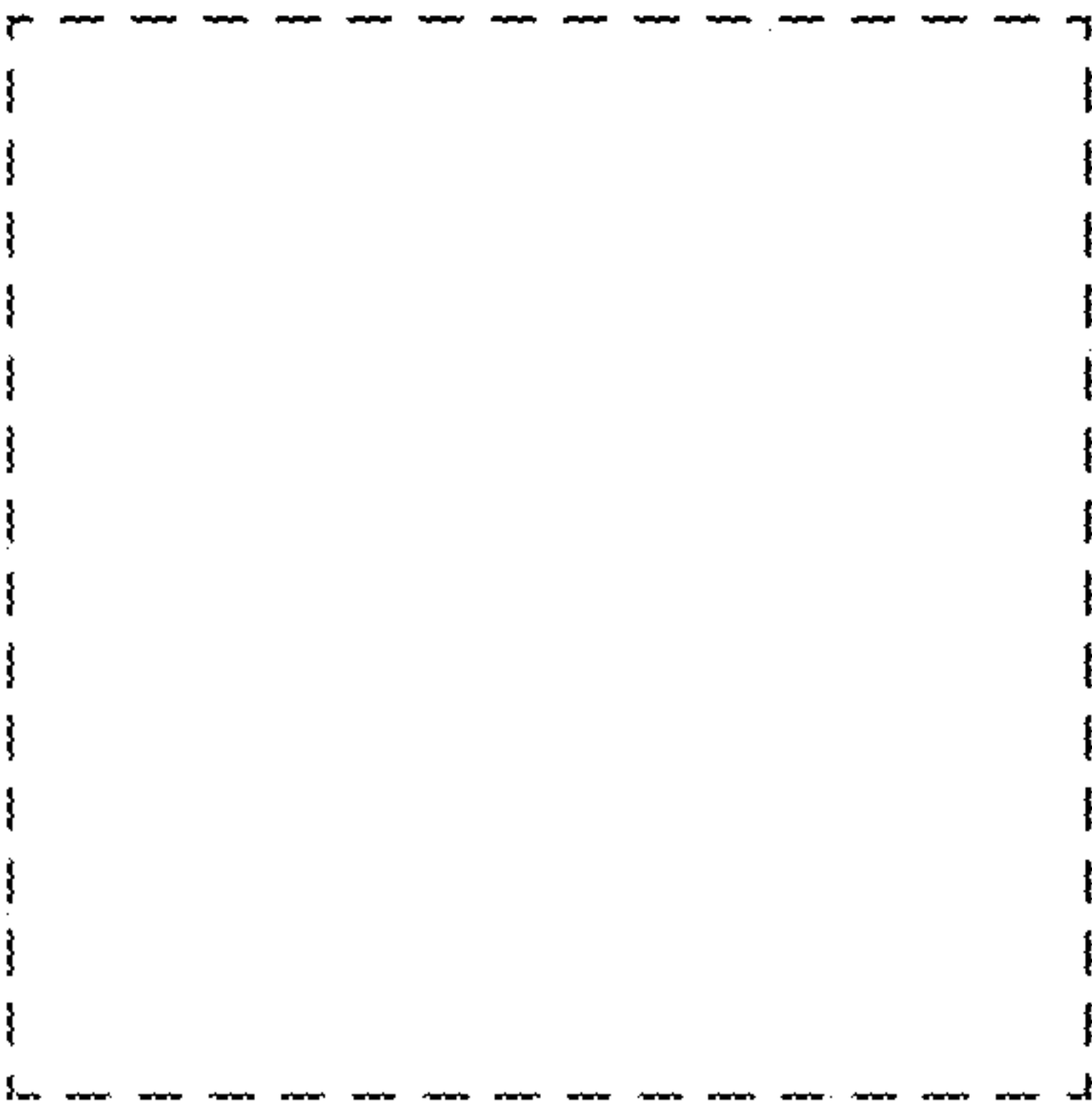


FIG. 17

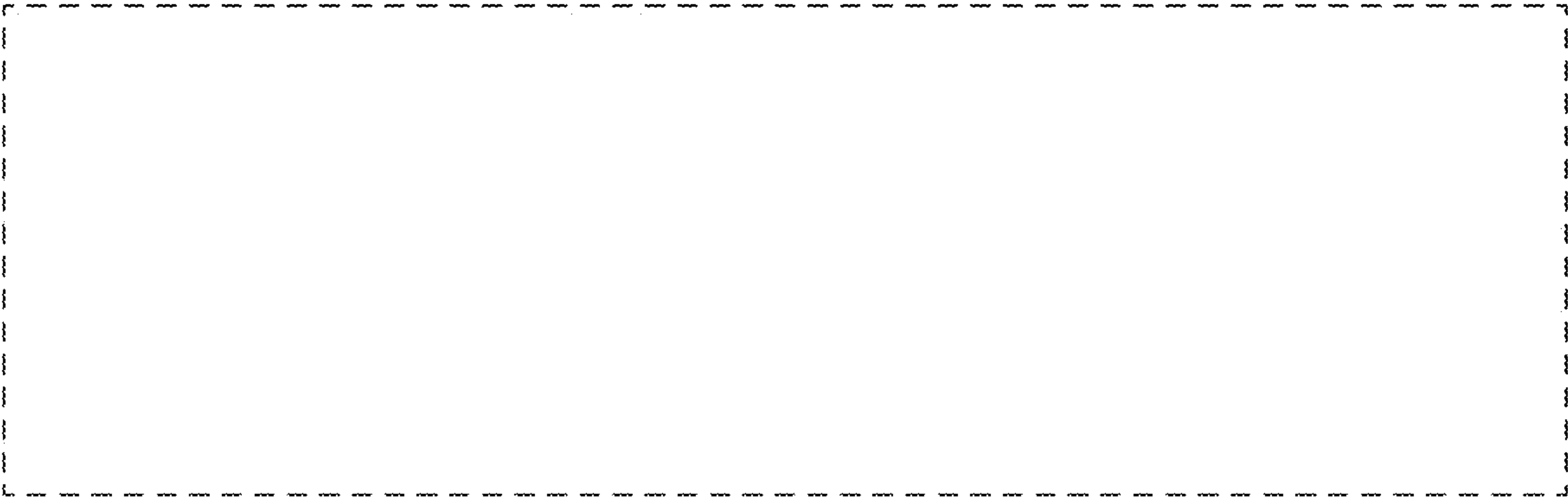


FIG. 18

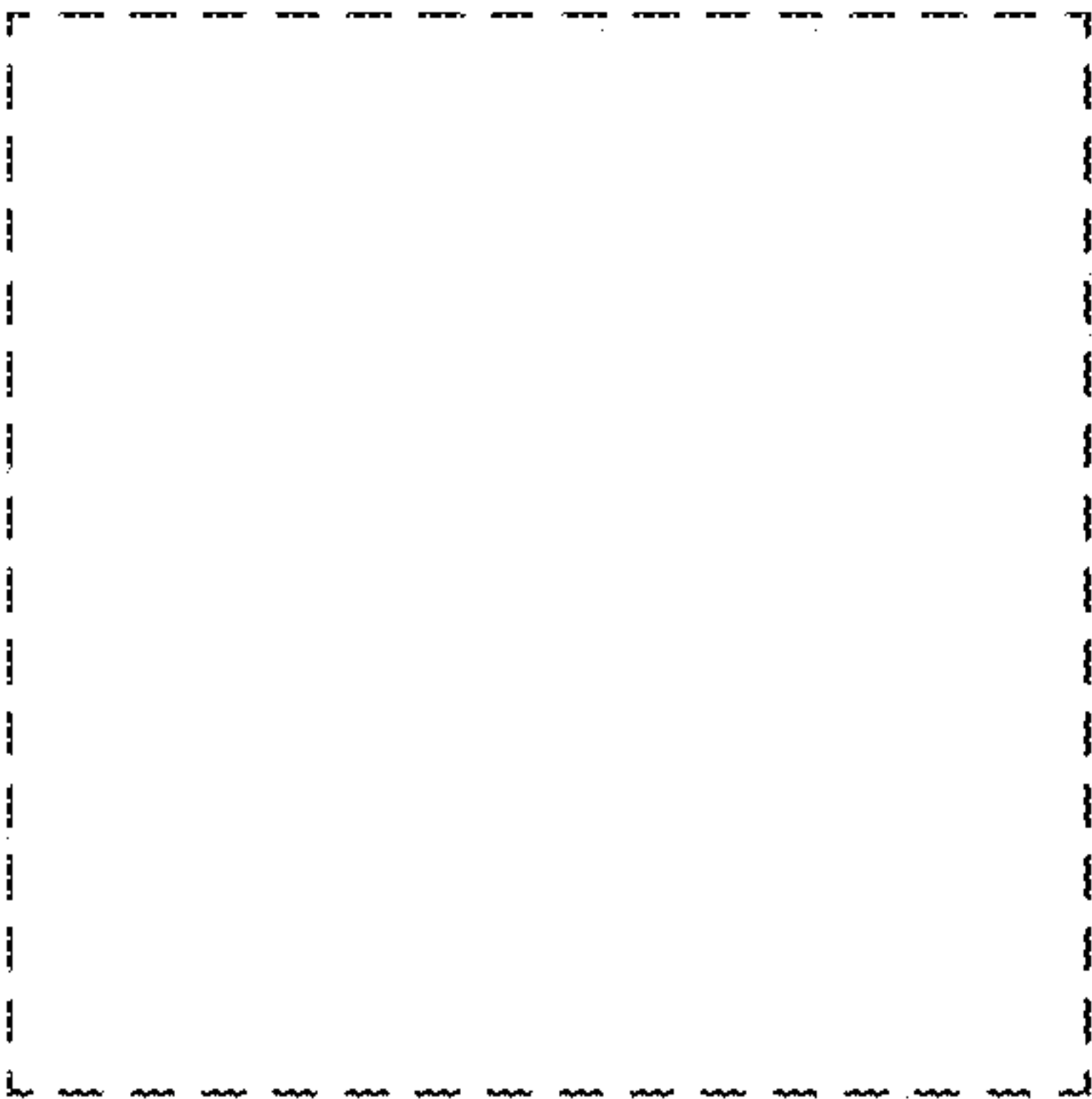


FIG. 19

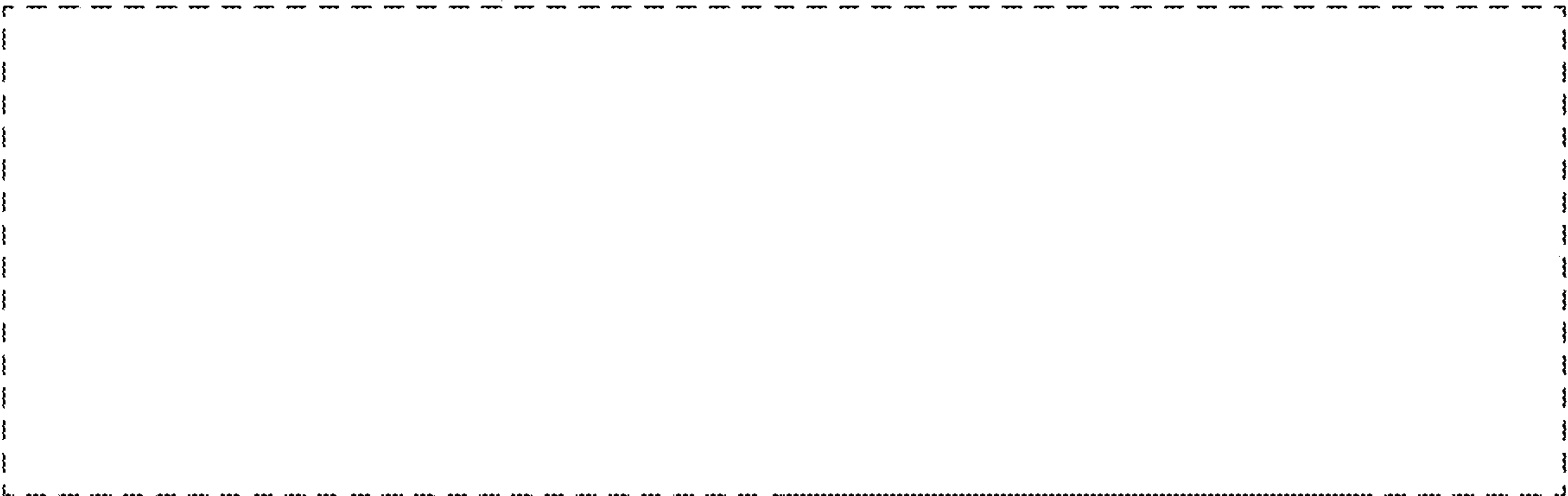


FIG. 20

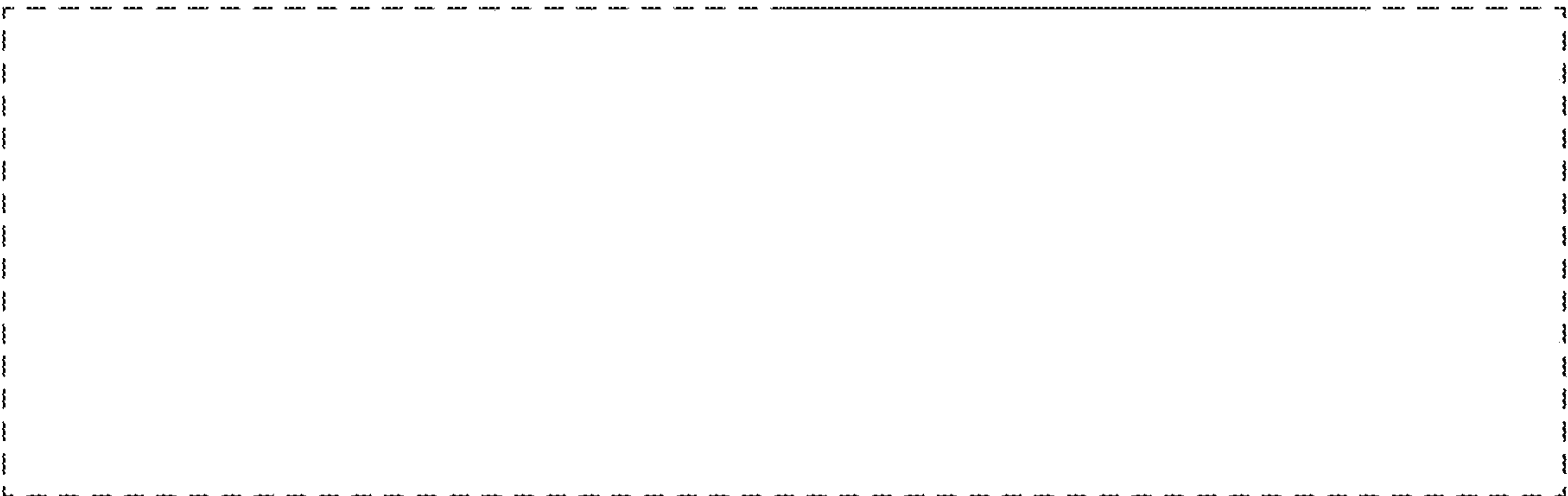


FIG. 21

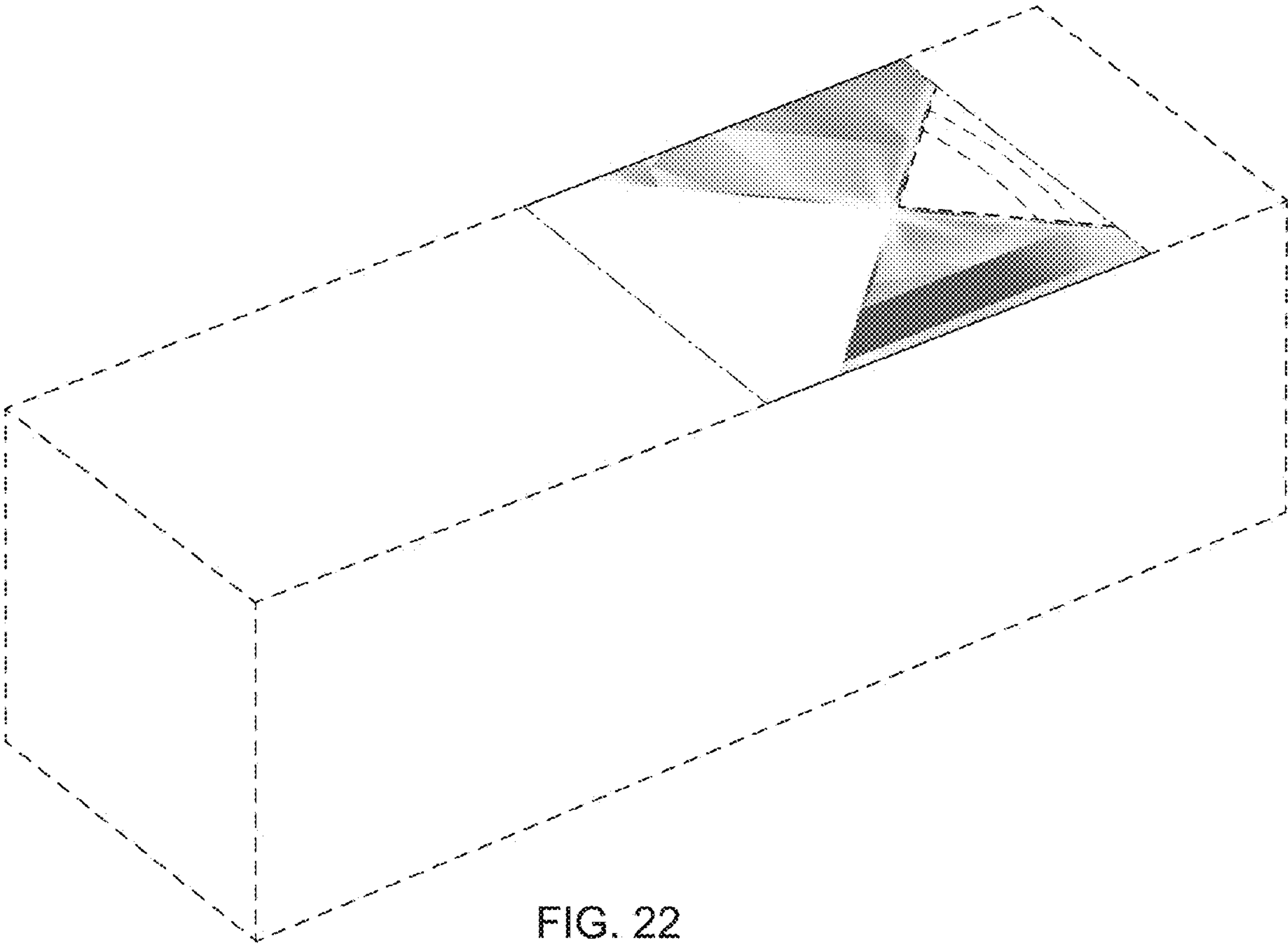


FIG. 22

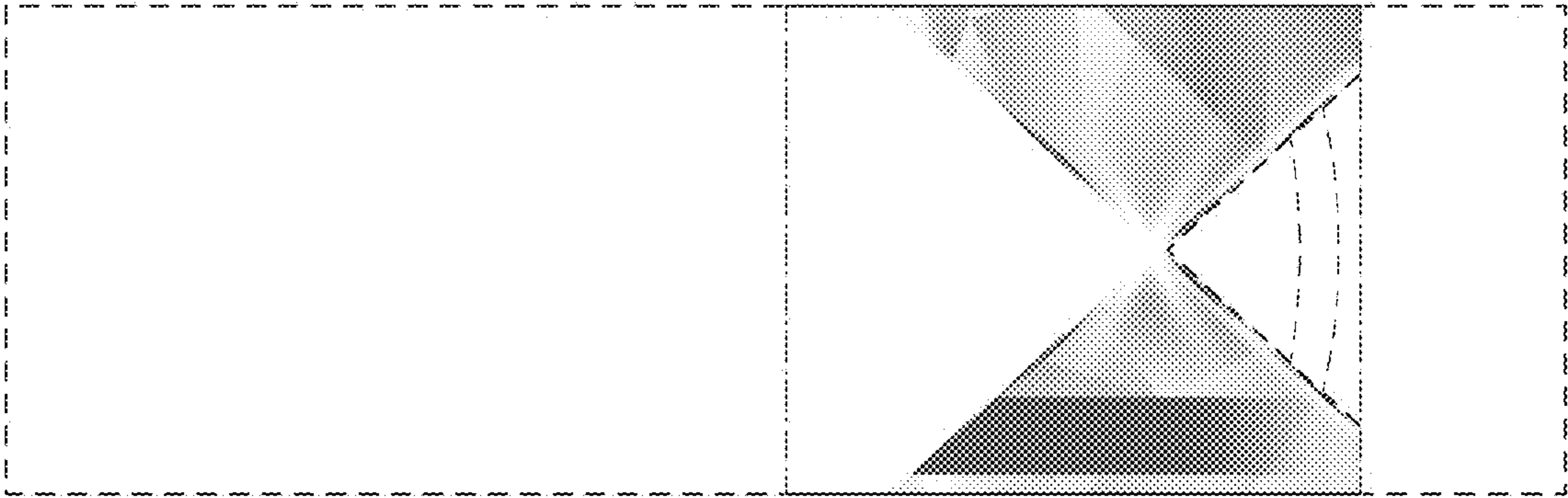


FIG. 23

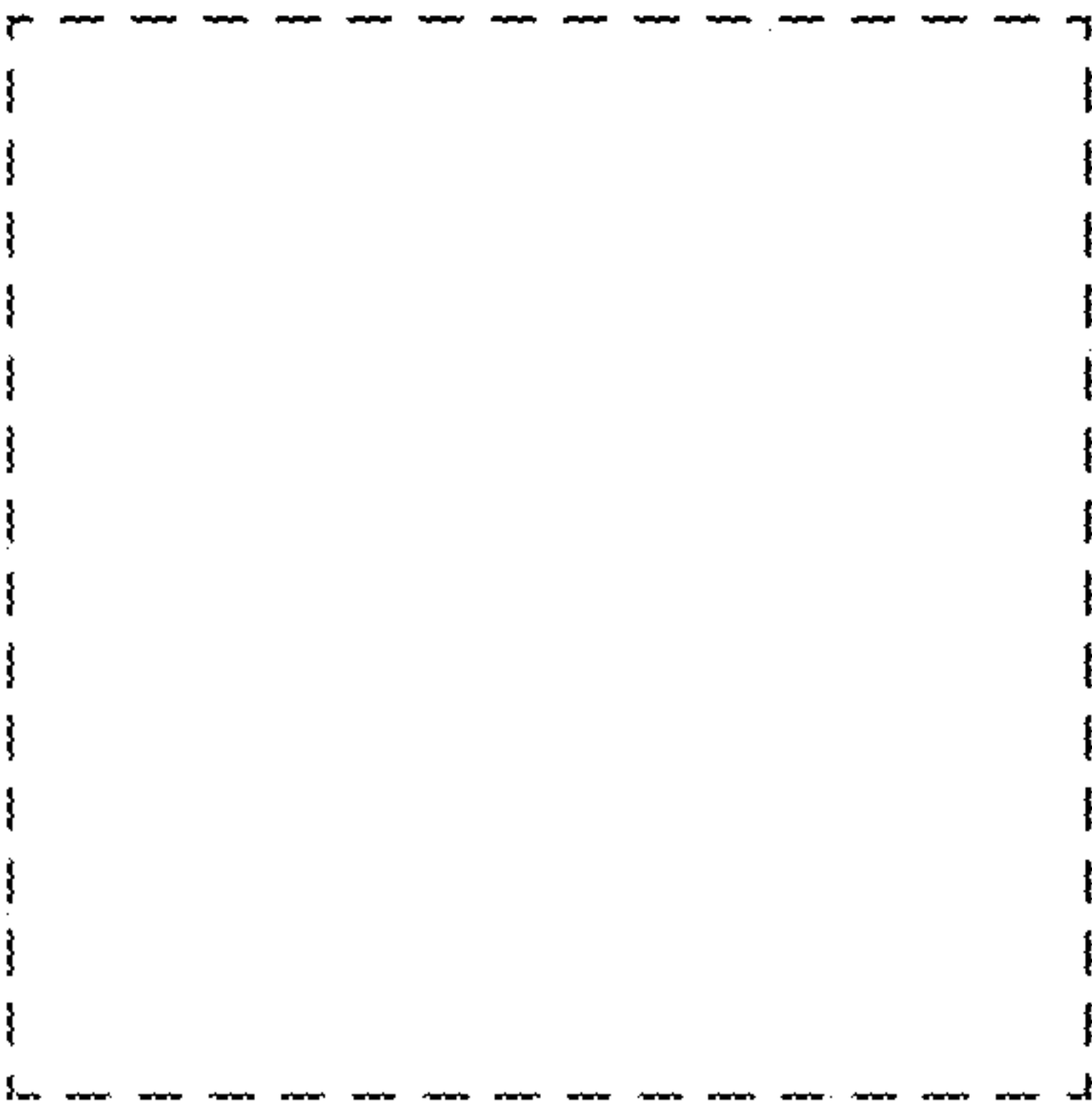


FIG. 24

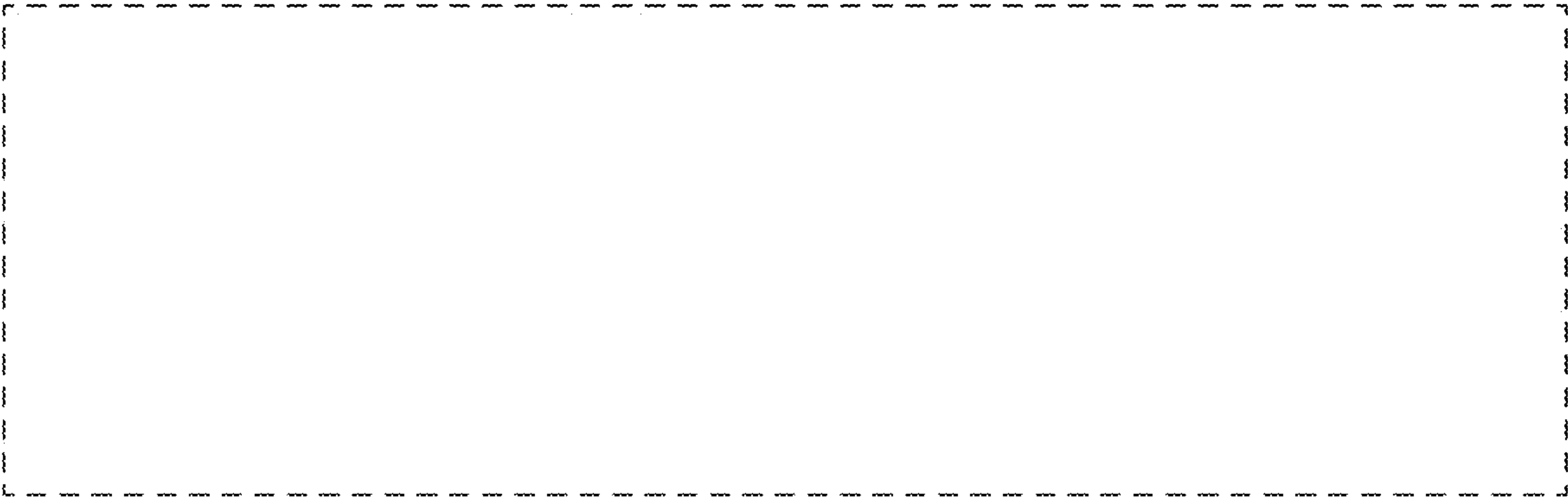


FIG. 25

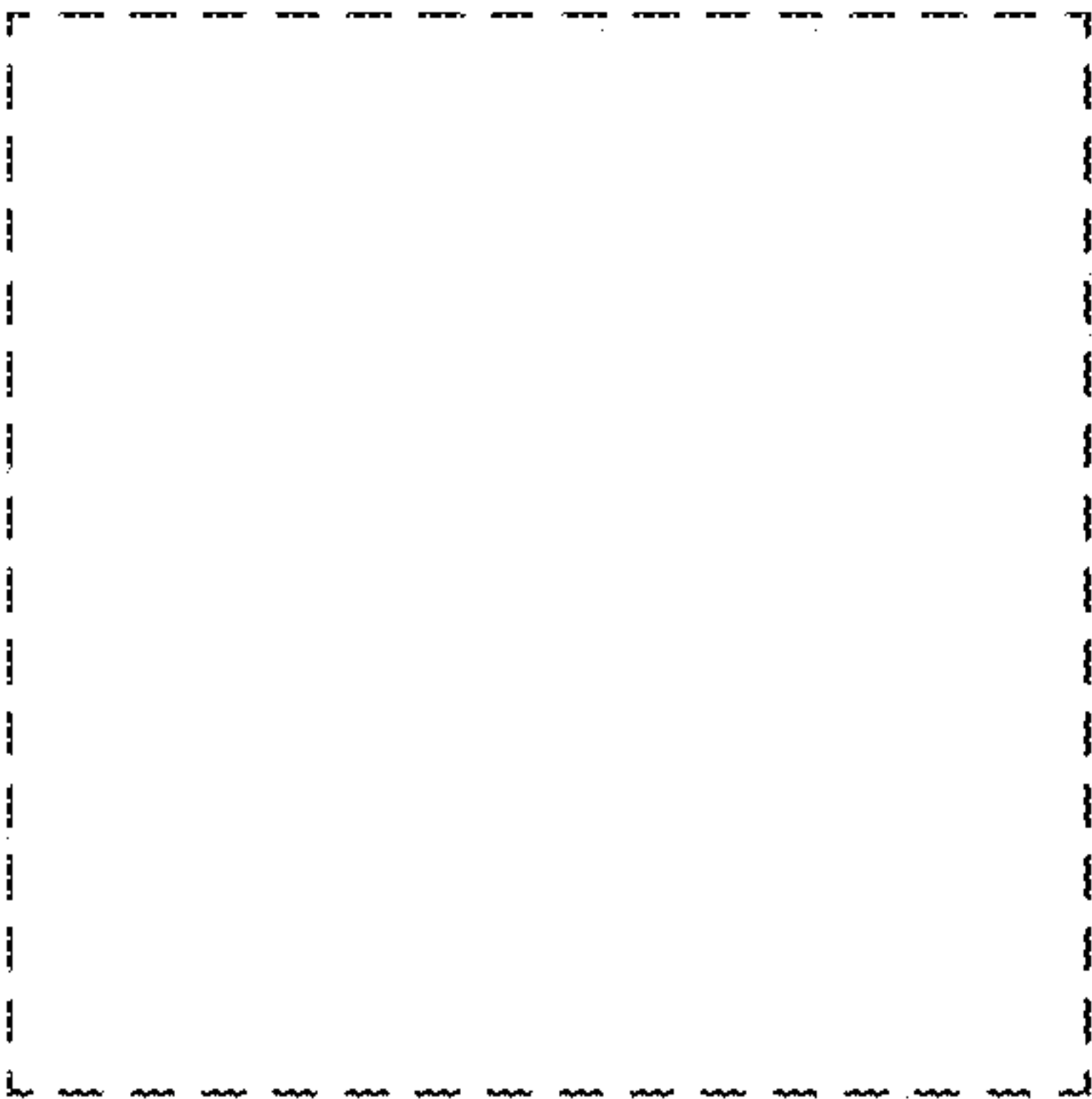


FIG. 26

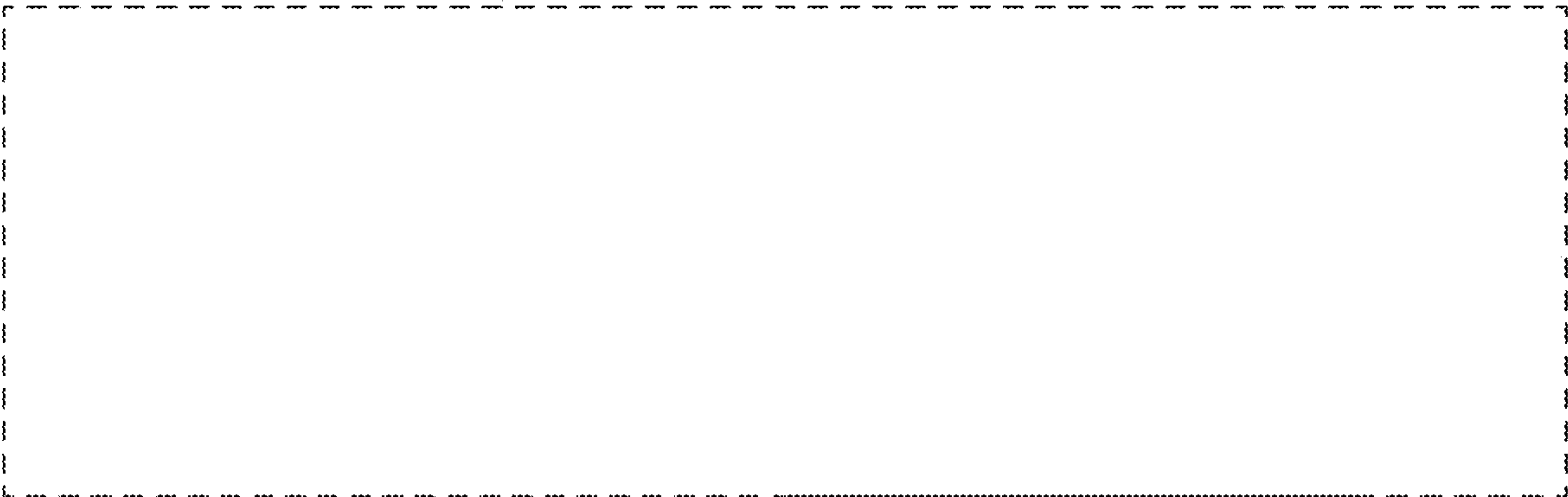


FIG. 27

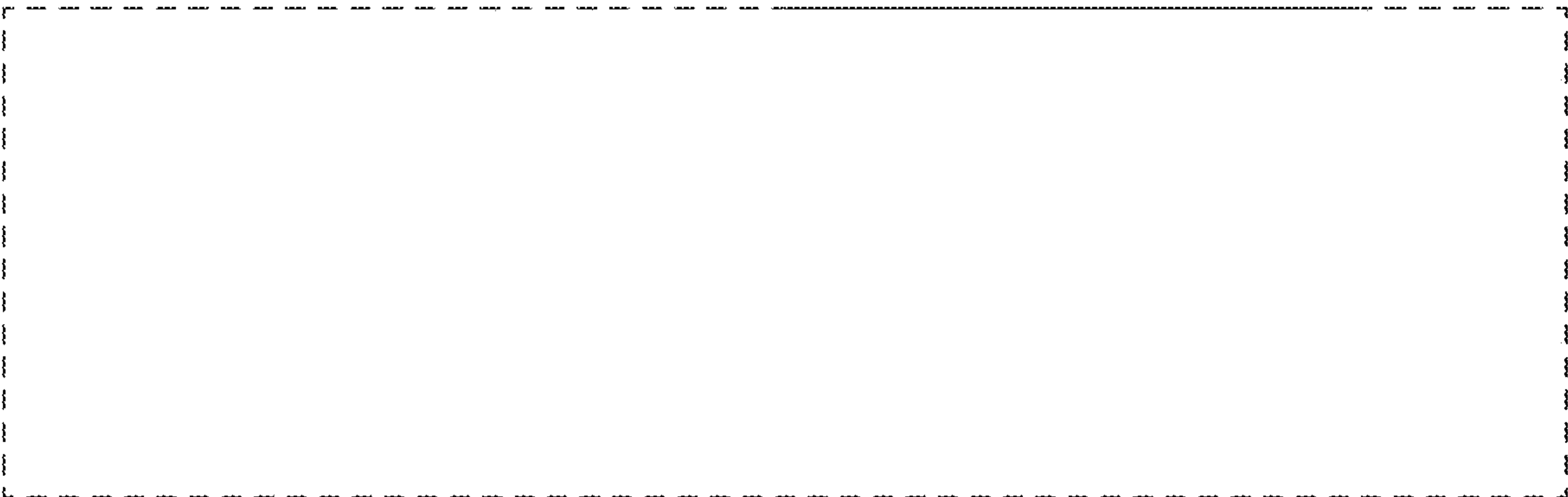


FIG. 28